

The Assam Civil Service (Class I) (Special Recruitment) Regulations, 1969

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[The Assam Civil Service \(Class I\) \(Special Recruitment\) Regulations, 1969](#)

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[No. AAP 135/68/49, dated the 14th November, 1969. - In pursuance of sub-rule \(2\) of Rule 4 of the Assam Civil Service \(Class I\) Rules, 1960, the Governor of Assam hereby makes the following regulations:](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

These regulations may be called The Assam Civil Service (Class I) (Special Recruitment) Regulation, 1969.

(2)

They shall come into force at once.

2.

Definitions.

(1)

In these regulations, unless the context otherwise requires-

(a)

"Board" means the Special Selection Board constituted in accordance with regulation 3.

(b)

"Commission" means the Assam Public Service Commission.

(c)

"Government" means the Government of Assam.

(d)

"Governor" means the Governor of Assam.

(e)

"Service" means the Assam Civil Service (Class I).

(2)

All other words and expressions used in these regulations but not defined, shall have the meanings respectively assigned to them in the Assam Civil Service (Class I) Rules, 1960.

3.

Constitution of the Special Selection Board.

- For the purpose of recruitment to the service under these regulations, there shall be a Special Selection Board consisting of the following, namely:

Chairman

(a)

The Chairman of the Assam Public Service Commission or a Member appointed by him.

Members

(b)

The Chief Secretary to the Government.

(c)

Commissioner of Hills Division.

(d)

Commissioner of Lower Assam Division

(e)

Commissioner or Upper Assam Division.

(f)

Secretary to the Government, Revenue Department.

(g)

Secretary to the Government, Development (P. & C.D.) Department.

(h)

Secretary to the Government, Personnel Department or any other Officer of the Personnel Department nominated by the Chief Secretary to transact any business in a meeting of the Selection Board, there shall be present at least five members including the Chairman which shall form a quorum.

4.

Method of selection etc.

(1)

The Government shall call upon the Board to select from amongst the members of the Assam Civil Service Class II who on the first day of January of that year have completed not less than eight years of continuous service in the Assam Civil Service Class II.

(2)

The Board shall examine the Character Rolls of all the eligible members of the Assam Civil Service Class II and shall also interview them, if considered, necessary, and shall prepare a list of such members of the Assam Civil Service Class II who in its opinion are suitable for being appointed to the service.

(3)

The number of members of the Assam Civil Service Class II included in the list shall not be more than twice the number of vacancies to be filled up under these regulations.

(4)

The election or inclusion in such list be based on merit and suitability in all respects with due regard to seniority.

(5)

The names of members of the Assam Civil Services Class II included in the list shall be arranged in order of their seniority in the Assam Civil Service Class II:

Provided that any junior officer who in the opinion of the Board is of exceptional merit and suitability may be assigned a place in the list higher than that of officers senior to him.

(5)

If in the process of selection, it is proposed to supersede any member of the Assam Civil Service Class II, the Board shall record its reasons for the proposed supersession.

5.

Consultation with the Commission.

- The list prepared in accordance with regulation 4 shall be forwarded to the Commission by the Commission and, unless it considers any change necessary-

(i)

the Character Rolls and other relevant papers of the members of the Assam Civil Service Class II included in the list.

(ii)

the Character Rolls and other relevant papers of the members of the Assam Civil Service Class II who are proposed to be superseded by the recommendation made in the list together with the reasons recorded by the Board for the proposed supersession.

(iii)

the observation of the Governor, if any, on the recommendation of the Board.

6.

Selection List.

(1)

The Commission shall consider the list prepared by the Board along with other documents received from the Governor; or on receipt of other documents as may be called by the Commission and, unless it considers any change necessary, approve the list.

(2)

If the Commission considers it necessary to make any change in the list prepared by the Board, the Commission shall inform the Governor of the changes proposed and after taking into account the comments of the Governor thereto, if any may approve the list finally with such modification, if any, as may, in its opinion, be just and proper.

(3)

The list as finally approved by the Commission shall form the Select List of the members of the Assam Civil Service Class II and shall be forwarded to the Governor along with all the papers received under regulation 5 and under sub-regulation (1), if any.

7.

Appointment to the service.

- Appointment of the members of the Assam Civil Service Class II to the Service shall be made by the Governor in order in which their names appear in the Select List.

8.

Inter se seniority of Special Recruits.

- The Seniority inter se of the members of the service recruited under those regulations shall be in the order in which their names are arranged in the Select List.

9.

Miscellaneous provision.

- Except as provided under these regulations, all matters, relating to probation, confirmation, pay, allowances, leave and other conditions of service shall be regulated by the provisions under the Assam Civil Service (Class I) Rules, 1960 and by the general rules framed under Art. 309 of the Constitution or continued to be force under Art. 372 of the Constitution governing such matter.

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